

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 10

Honorable Jeffrey B. El-Hajj

Blanca Than, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2210

DATE: June 23, 2026 TIME: 9:00 A.M. / 9:01 A.M.

To contest the ruling, call (408) 808-6856 before 4:00 P.M.

Make sure to let the other side know before 4:00 P.M. that you plan to contest the ruling.
(Cal. Rules of Court, rule 3.1308(a)(1); Local Rule 8.D.)

****Please specify the issue to be contested when calling the Court and counsel****

Line 3	25CV459257	Alexander Xue v. CRJ Partners V, LLC	Defendant CRJ Partners V, LLC's demurrer to the complaint. Notice is not proper; there is no proof of service of the demurrer or its supporting documents. The hearing on the demurrer is CONTINUED to February 4, 2027, at 9:00 a.m. in Department 10. Defendant is ordered to file a new notice of demurrer reflecting the new hearing date. Defendant must serve plaintiff with the new notice, the demurrer, and all supporting documents. The court will prepare the order.
Line 4	23CV427303	Highlander Home, Inc. v. Walmart, Inc.	Click LINE 4 or scroll down for ruling.
Line 5	24CV444940	Bank of America, N.A. v. Anthony Snyder	Plaintiff Bank of America, N.A.'s motion to vacate dismissal and enter judgment by stipulation against defendant Anthony Snyder. (Code Civ. Proc., § 664.6.) Notice is proper and the motion is unopposed. The parties signed a stipulation for entry of judgment in 2024, under which defendant agreed to make installment payments to pay off a debt. A declaration in support of the motion indicates defendant stopped making payments. On good cause shown, the motion is GRANTED. The November 19, 2024 order of dismissal is VACATED. Moving party to submit proposed order and proposed judgment, indicating damages of \$6,355.22 and costs of \$643.56.
Line 6	25CV465581	Christina Hatzistratis v. Powerflex Solar, LLC	Click LINE 6 or scroll down for ruling.

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9:01 A.M.

LINE #	CASE #	CASE TITLE	RULING
Line 1	24CV453871	Cathleen Bauer v. Ford Motor Company et al	Plaintiff's counsel's motion to be relieved as counsel. <u>Parties to appear.</u>

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Calendar Line 2**Case Name:** Lingxiao Yang v. Mengxiong Liu et al.**Case No.:** 24CV447771

This is an action for breach of contract and declaratory relief arising out of a failed business relationship. Plaintiff Lingxiao Yang (Yang) sued defendants Mengxiong Liu, MoveSpace Limited (MoveSpace), and Doe defendants.

Yang's original complaint, alleging breach of contract and declaratory relief, was filed in September 2024. Defendants Liu and MoveSpace (hereafter, Defendants) demurred to the original complaint. Because Yang did not oppose the demurrer, it was sustained as to both causes of action with 10 days' leave to amend. (See September 4, 2025 minute order.)

The operative first amended complaint (FAC) alleges causes of action for (1) breach of contract and (2) declaratory relief. The FAC alleges that Yang, defendant Liu, and nonparties Hanqing Lu (Lu) and Zhengnan Zhao (Zhao) formed defendant MoveSpace as a "crypto company." Liu, Lu, and Zhao (but not Yang) caused MoveSpace to breach a contract with the Sui Foundation in 2023. (See FAC, ¶¶ 14-24.) The Sui Foundation threatened to sue over this breach. After this occurred, Lu and Zhao left MoveSpace. Liu, on behalf of himself and MoveSpace, then allegedly "entered into an oral settlement" with Yang. In exchange for Liu and MoveSpace both transferring their interest in tokens they had received from the Sui Foundation to Yang, Yang would agree not to sue them and would persuade the Sui Foundation not to sue them. Yang was able to persuade the Sui Foundation not to sue, but Lui and MoveSpace refused to transfer their tokens to Yang. (*Id.* at ¶¶ 25-52.) Attached to the FAC as exhibit 1 is a copy of an unsigned agreement drafted by the Sui Foundation, which Yang alleges is a copy of the contract MoveSpace entered into with the Sui Foundation. (See FAC at ¶ 18.)

At issue is Defendants' demurrer to the FAC, opposed by Yang.

REQUEST FOR JUDICIAL NOTICE

Defendants have submitted a request for judicial notice in support of the demurrer. "Judicial notice may not be taken of any matter unless authorized or required by law." (Evid. Code, § 450.) A precondition to judicial notice in either its permissive or mandatory form is that the matter to be noticed be relevant to the material issue before the court. (*Silverado Modjeska Recreation and Park Dist. v. County of Orange* (2011) 197 Cal.App.4th 282, 307 [citing *People v. Shamrock Foods Co.* (2000) 24 Cal.4th 415, 422, fn. 2].) Evidence Code section 453, subdivision (b), requires a party seeking notice to "[furnish] the court with sufficient information to enable it to take judicial notice of the matter."

As there is no authority permitting the filing of separate briefs in support of or in opposition to a request for judicial notice, the court has not considered Yang's opposition to Defendants' request filed with Yang's opposition to the demurrer.

Defendants request judicial notice of a copy of an article purportedly posted on a portion of the website of the Sui Foundation (referred to as a blog) in July of 2023, attached to the request as exhibit 1. Defendants assert that the article can be noticed pursuant to Evidence Code section 452, subdivision (h). The request is denied because that subdivision does not